

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

March 9, 2009

The Governing Body of the City of Cheyenne met on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON FEBRUARY 23, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON MARCH 2, 2009. Motion (per Consent Agenda) carried.

Mayor Kaysen opened and conducted two public hearings for the purpose of receiving comments and input on the following:

Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Outback Steakhouse of Florida, LLC d/b/a Outback Steakhouse, 1626 Fleischli Parkway, Cheyenne, WY (License currently held by Outback/Denver-I, L.P. d/b/a Outback Steakhouse, 1626 Fleischli Parkway, Cheyenne, WY). Bob McCue, Speight, McCue & Crank, attorney representing the applicant, clarified the transfer request is due to national restructuring of the organization. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing. The application was referred to Finance Committee.

Restaurant liquor license application filed with the City Clerk's Office for Jose Luis Gomez-Salcedo d/b/a Los 3 Caballos, 1907 E. Lincolnway, Cheyenne, WY. Alicia Marie Fuentes and Jose Luis Gomez-Salcedo, applicant, advised this is a new application and requested approval. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing. The application was referred to Finance Committee.

"AN ORDINANCE CREATING SECTION 10.24.170, DISTRACTIVE DRIVING PROHIBITED; EXCEPTIONS, OF CHAPTER 10.24, RULES OF THE ROAD GENERALLY, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING." Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Collins. Mr. Brown moved to amend by substitute, seconded by Mr. Pierson. It was advised the proposed substitute adds the phrase "including cell phone usage" at

the end of Section A; reorganizes and reletters/renumbers several sections, and provides that a violation would constitute a secondary, not primary, offense. Discussion included the following topics: Inclusion of the cell phone usage phrase, hands-free cell phone usage, types of driving distractions, original intent of the ordinance, primary vs. secondary offense status for violations, and texting as a form of driver distraction. Upon inquiry, Bob Fecht, Police Chief, explained the difference between a primary and secondary offense and factors involved in an officer stopping/pulling over a driver, the citation issuance process, and evidence officers must determine is sufficient to issue a citation for a secondary violation. Motion to amend by substitute failed. Voting “yes”– Mr. Pierson and Dr. Rinne. Voting “no” – Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Mr. Brown moved to amend by substitute, seconded by Ms. Broyles. It was noted the proposed substitute removes Section D. (i.e. “No motor vehicle shall be halted solely for a violation of this ordinance”), and reletters the certain ordinance sections. It was clarified the substitute ordinance changes the violation penalty to constitute a primary offense. Discussion followed on support/non-support of a violation being a primary offense; ordinance sub-section C. 2. wording that excludes persons reporting an emergency; vehicle accident statistics involving cell phones used by drivers; hands-free devices and cost of same, and driver distraction scenarios. Upon inquiry regarding sub-section C. 2., Dan White, City Attorney, stated his interpretation of the sub-section means that a person contacting an emergency services agency to inform that agency of an emergency would be exempt from the entire section. Upon inquiry, Chief Fecht reviewed officer discretionary authority relative to citing distracted drivers, and commented on the careless driving ordinance that is currently in place. Further discussion followed on cell phone usage; hands-free cell phone devices; suggestion of removing ordinance Section A.; driving distraction scenarios (inside/outside a vehicle); officer discretion in issuing citations; primary vs. secondary offense status, and notification of ordinance requirements to the public and temporary visitors to the community. During discussion, a point of order was raised involving comments being made with Mayor Kaysen advising comments need to remain on topic. Mr. Spiker moved to postpone for 2 weeks (to March 23, 2009), seconded by Mr. Collins. Brief discussion followed regarding action on the most previous motion to amend by substitute, relative to support or non-support for the substitute, prior to action on the motion to postpone. Mr. Spiker withdrew his motion to postpone with concurrence by Mr. Collins as second to the motion. Upon inquiry, Mr. White clarified that if an individual were using a hands-free cell phone device and is involved in an accident, theoretically it could be concluded by an officer that the driver was still distracted pursuant to wording contained in Section A. of the proposed substitute, which states that no person shall operate a motor vehicle while the attention of the driver is distracted from the safe operation of the vehicle. Ms. Broyles moved to amend Section B. of the substitute by ending the sentence after the word “vehicle” and striking the remaining phrase “unless the telephone is specifically designed to allow hands-free operation and is used in a hands-free manner”. Motion died due to the lack of a second to the motion. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Ms. Ash, Mr. Pierson, Dr. Rinne and Mr. Valdez voting “no”. Mr. Spiker moved to postpone for 2 weeks (to March 23, 2009), seconded by Mr. Collins. Brief discussion followed on the purpose of postponement and the approved motion to amend by substitute, which makes usage of cell phones and other driving distractions while operating a motor vehicle a primary offense. Motion to postpone for 2 weeks carried. Voting “yes” – all members of the governing body with the exception of Ms. Case, Mr. Pierson and Dr. Rinne voting “no”.

[CA] “A RESOLUTION CERTIFYING THAT THE GOVERNING BODY OF THE CITY OF CHEYENNE IS IN AGREEMENT WITH THE LARAMIE COUNTY BOARD OF

COMMISSIONERS AS TO THE MARCH 2009 APPLICATION FOR THE COUNTYWIDE CONSENSUS BLOCK GRANT (2009-2010 FISCAL BIENNIUM) TO THE STATE LOAN AND INVESTMENT BOARD.” Motion (per Consent Agenda) carried. (#5105)

“A RESOLUTION RATIFYING THE LISTING OF CHEYENNE’S MOORE HAVEN HEIGHTS HISTORIC DISTRICT TO THE NATIONAL REGISTER OF HISTORIC PLACES AND AUTHORIZING THE ADDITION OF THE PROPERTIES CONTAINED THEREIN TO THE CITY’S INVENTORY OF HISTORIC STRUCTURES.” Chuck Lanham, Cheyenne Planning Office/Historic Preservation, provided information on the purpose of the resolution, which is to ratify the listing of the Moore Haven Heights structures to the National Register, and to add the actual listing of properties to the City’s inventory of historic structures. Mr. Lanham advised there were some property owners who requested their respective properties be withdrawn from the listing prior to establishment of the district, and that these would be considered non-contributing structures without affecting the rest of the structures within the district. He stated once the district is established by the National Parks Service, it is hard to remove properties from the listing. Mr. Lanham discussed the district survey that was conducted; explained property requirements to be included in an historic district; clarified there are no federal, state or city restrictions other than City Code addressing demolishing a structure within an historic district (i.e. demolition permits); commented that properties within an historic district tend to maintain its value longer than properties in non-historic districts, and noted that sometimes neighborhood residents form their own association to uphold the historic integrity of the area. Upon inquiry, Mr. Lanham provided information on notification efforts to property owners to advise of public meetings pertaining to the proposed historic district designation. Mr. Lanham and City Attorney Dan White reviewed City Code demolition application, review and permitting procedures, including the appeal process, and zoning restrictions. Matt Ashby, Urban Planning Director, provided further information on the National Register designation, stating it does not come with restrictions from the federal government but that local jurisdictions have authority to apply additional restrictions on historic districts, such as the City’s demolition permit process, and that other elements can be implemented by City Code to provide property protections. Upon inquiry, Mr. Lanham commented on positive aspects to property owners who have structures included in an historic district and a previous grant request approved by the governing body that assisted with funding to conduct the property survey, and advised communication with the Building Dept. would be made involving any unsafe structures. Speaking in favor of the resolution were: Kara Hahn, National Register Program Coordinator, Wyoming State Historic Preservation office; Betsy Bradley, State Historic Preservation office and property owner within the proposed district; Jeanie Tucker, Rainsford Historic District resident, and Glen Garrett, property owner within the proposed district. Topics presented and discussed included: Letters sent to property owners in the proposed district advising of the intent to form an historic district; benefits of being a property owner within an historic district; grant eligibility to owners if their structure is listed on the National Register of Historic Places; encouragement for creation of more districts within the community; property values; owners’ responsibility to understand their role and maintain their property within a district, and designation of districts providing for a community neighborhood identity. Mr. Brown advised there was no recommendation on the item from Public Services Committee. Mr. Brown moved to adopt, seconded by Mrs. Case. Discussion included content of the letter of notification sent to property owners by the Planning office; concerns with demolition permit applications relative to previous requests involving the historic Governors’ Mansion protective area; current condition and maintenance of rental structures located within the proposed district; property owners’ rights; and future potential transfers of property ownership. Following a 10 minute recess to allow time to

photocopy and distribute the letter the Planning office mailed to property owners regarding notification of the development of the proposed district, Mayor Kaysen reconvened the meeting at 8:00 p.m. Upon inquiry, Mr. Lanham provided information concerning remodeling of structures, adding on additions, etc. Discussion followed on content of the letter sent to property owners; positive impact the district would have on neighbors; procedures for demolishing properties; gentrification and preservation of historic buildings and neighborhoods; property rights, and future property owner notification letters containing more detailed information on proposed historic district formation. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Brown, Mr. Pierson and Mr. Spiker voting “no”. (#5106)

[CA] “A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE, WYOMING, TO LEASE, WITH AN OPTION TO PURCHASE CERTAIN EQUIPMENT.” Motion (per Consent Agenda) carried (amount not to exceed \$1,274,260.00). (#5107)

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR JEFFERSON HILLS SUBDIVISION, A REPLAT OF A PORTION OF LOT 1, BLOCK 1, LEY SUBDIVISION AND TRACT 2, HERMANN MEADOWS SUBDIVISION, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF AND ADJACENT TO E. JEFFERSON ROAD, EAST OF S. GREELEY HIGHWAY).” Mayor Kaysen advised the item was being withdrawn from the agenda at the request of the developer.

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR SOUTH PARK ESTATES, 6TH FILING, A REPLAT OF A PORTION OF SOUTH PARK ESTATES, 2ND FILING, INTERIOR HEIGHTS, STANFIELD ADDITION BLOCKS 694 AND 744, STANFIELD 3RD ADDITION AND PORTIONS OF BLOCKS 713-714, 754-756, AND 775-777, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED NORTH OF I-80, BETWEEN WALTERSCHEID BOULEVARD AND PARTOYAN DRIVE).” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR COLLEGE BUSINESS PARK, 2ND FILING, A REPLAT OF THE NORTH HALF OF TRACT 217, LESS THE WEST 27-FEET THEREOF; AND THE NORTH HALF OF TRACT 218, LESS THE EAST 17-FEET THEREOF, SUNNYSIDE ADDITION, 6TH FILING, CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF N. COLLEGE DRIVE AND RAWLINS STREET)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPOSED ANNEXATION OF LOT 5, BLOCK 2, SEAVER’S SUBDIVISION, LARAMIE COUNTY, WYOMING, (LOCATED NORTH OF AND ADJACENT TO EVERTON DRIVE AND EAST OF AND ADJACENT TO HARMON AVENUE).” -- referred to Public Services Committee (sponsor - Mr. Brown).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

County Preliminary Plat for Foxtail Subdivision, a replat of Tract 6 and a portion of Tract 7, Allison Tracts, Laramie County, Wyoming (located south of and adjacent to E. Fox Farm Road,

east of S. Greeley Highway). Mayor Kaysen advised the item was being withdrawn from the agenda at the request of the developer.

LEASES/CONTRACTS/LEGAL:

[CA] Professional Services Agreement between the City of Cheyenne and Doug Selby, Architect, for final design of the Cheyenne Depot Plaza Operations Facility (SLIB Funding) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Boys and Girls Club of Cheyenne, Inc., to lease the building located at 1700 Snyder Avenue, Cheyenne, Wyoming -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Contract Modification No. 1 to Contract No. 5056 between the City of Cheyenne, Sanitation Dept., and Magic City Enterprises for sorting, processing and marketing of recyclable materials. Mayor Kaysen advised the item was being withdrawn from the agenda at the request of staff.

[CA] Addendum to Contract No. 4710 for annual agreement between the City of Cheyenne, Information and Technology Div. and B.I.G. Wireless, LLC, for preventive maintenance, on-site emergency and equipment replacement for the wireless communications system (2007-2010 1% Capital Equipment Fund) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5052 between the City of Cheyenne, Sanitation Dept and Wyoming Salvage for removal of all appliances, metals, and steel from City Landfill -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5260 between the City of Cheyenne and Tarco, Inc. for additional Greenway path to the Dry Creek-Sheridan Reach Flood Control Improvements Project (1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5296 between the City of Cheyenne and Naranjo Civil Constructors for partial retention release on Cheyenne Greenway- Safe Routes To Schools- Johnson/Goins Corridor Project -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Authorization to purchase reflective beads under Wyoming Department of Transportation Bid No. 08-0265LW (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Authorization to purchase traffic paint under Wyoming Department of Transportation Bid No. 08-0266LW (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid No. M-13-09 for a contract between the City of Cheyenne and Knife River, Cheyenne, WY, for the FY 2009 Yellowstone Overlay Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid No. M-14-09 for a contract between the City of Cheyenne and Northstar Concrete Inc., Loveland, CO, for the FY 2009 Intersection Repair Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid No. M-15-09 for a contract between the City of Cheyenne and S&S Builders, LLC., Cheyenne, WY, for the FY 2009 Inlet Repair Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid No. M-16-09 for a contract between the City of Cheyenne and S&S Builders, LLC., Cheyenne, WY, for the Carey Avenue Extension Project (SLIB Funding) -- referred to Finance Committee.

[CA] Consideration of Bid No. M-19-09 for a contract between the City of Cheyenne and Knife River, Cheyenne, WY, for annual contract for furnishing aggregate for the City Street and Alley Dept. (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid No. M-20-09 for a contract between the City of Cheyenne and Knife River, Cheyenne, WY, for annual contract for Hot Plant Mix, Asphalt Tack Oil and Cold Mix for the City Street and Alley Dept. (2007-2010 1% Sales Tax) -- referred to Finance Committee.

APPLICATIONS/LICENSES/PERMITS:

Renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar & grill, and microbrewery) filed with the City Clerk's Office: Wigwam, Inc. d/b/a Redwood Lounge and Package Liquor, retail, 2105 E. Lincolnway; Cheyenne Vail Investments, Inc. d/b/a Gus & Jon's Crown Bar, retail, 222 West Lincolnway; Poor Richard's d/b/a Poor Richard's, retail, 2233 E. Lincolnway; W.W. Enterprises, Inc. d/b/a Les' Lamp Lounge and Drive-In Liquor, retail, 101 W. 6th St.; The Blue Bird, Inc. d/b/a Uncle Charlie's, retail, 6001 Yellowstone Road; Langhoff Enterprises d/b/a Two Bar Bowl, retail, 740 Carlson; Cheyenne OTB, LLC d/b/a Wyoming OTB, retail, 3307 Nationway; Fraternal Order of Eagles Aerie #128, limited retail, 1600 Thomes Ave.; B.P.O. Elks #660, limited retail, 100 E. 17th St.; Cheyenne 28, LLC d/b/a C.B. & Potts Restaurant and Big Horn Brewery, retail, 1650 Dell Range Blvd.; KEG, Inc. d/b/a D.T.'s Liquor Mart & Tusker Bar, retail, 3310 Ridge Road; JKLL, Inc. d/b/a Game On Sports Bar, retail, 1617 Capitol Ave.; Twin Dragon Chinese Restaurant, Inc. d/b/a Twin Dragon, restaurant, 1809 Carey Avenue; South Side Bar, Inc. d/b/a Keg 'n Kork Liquors, retail, 822 Central Ave.; Rande's Ritz, LLC d/b/a Midtown Tavern, retail, 1303 E. Pershing Blvd.; Cheyenne Country Club, limited retail, 800 Stinner Road; F & G Corp. d/b/a The Green Door, retail, 301 E. Lincolnway; ENI, Inc. d/b/a Eagle's Nest, retail, 1101 W. Lincolnway; Outback/Denver-I, LP d/b/a Outback Steakhouse, retail, 1626 Fleischli Parkway; Bedrock Seafood, Inc. d/b/a River Mountain Seafood/Mayflower, retail, 112 W. 17th St.; Four Winds, Inc. d/b/a Four Winds, retail, 1103 E. Pershing; EKG, Inc. d/b/a D.T.'s Package Liquor and Lounge, retail, 2121 E. Lincolnway; Alf in Wyoming Enterprise, LLC d/b/a Alf's Pub and Package Liquor, retail, 1622 E. 19th St.; Flatland Investments, LLC d/b/a Godfather's Pizza, restaurant, 5719 Yellowstone Road; Francis E. Self Post #6 d/b/a The American Legion Post #6, limited retail, 2001 E. Lincolnway; Primos Cheyenne d/b/a Scotty's Pizza Factory, restaurant, 1802 Dell Range; F.E. Warren Post #1881 d/b/a V.F.W. Post #1881, limited retail, 2816 E. 7th St.; Knights of Columbus Council #801 d/b/a Casey's Club, limited retail, 507 W. 28th St.; Blanne Enterprises, Inc. d/b/a Cool River Wine & Spirits, retail, 5225 Yellowstone Rd.; Mantiff Cheyenne

Hospitality, LLC d/b/a Best Western Hitching Post Inn Resort and Conference Center, retail, 1600 W. Lincolnway; Airport Golf Club, Inc., limited retail, 4801 Central Ave.; Katrina M. and Adam L. Howell d/b/a Scooter's Scoreboard Bar, retail, 507 E. Lincolnway; Cloud 9, Inc. d/b/a Cloud 9 Restaurant and Lounge, retail, 300 E. 8th Ave.; Texas Roadhouse of Cheyenne, LLC d/b/a Texas Roadhouse, retail, 1931 Bluegrass Circle; HEJE, Inc., retail, 4503 Western Way; KZ Corporation d/b/a Goofy's Tavern, retail, 2801 E. Lincolnway; Stillwater, Inc. d/b/a Mingles, retail, 1618 Stillwater Ave.; Prairie View Golf Club, limited retail, 3600 Windmill Road; Albany, Inc. d/b/a Albany Restaurant, Bar and Liquormart, retail, 1506 Capitol Ave.; Mehn, Inc. d/b/a Casa De Trujillo, restaurant, 122 W. 6th St.; S&W Properties, LLC d/b/a Vinos Wine and Spirits, retail, 453 Vandehei Ave., #190; The Plains Hotel Co., LLC d/b/a The Plains Hotel, resort, 1600 Central Ave.; Real Mexican Foods, Inc. d/b/a Los Amigos Restaurant, restaurant, 620 Central Ave.; Avanti, Inc. d/b/a Dell Range Liquor, retail, 3806 Dell Range Blvd., Suite 4; Pizza Hut on Yellowstone, Inc, restaurant, 5320 Yellowstone Rd.; Hotel West I, LP d/b/a Holiday Inn Cheyenne, resort, 204 W. Fox Farm Rd.; AMVETS Post #10, limited retail, 3839 E. Lincolnway; Moreno & Reyes, LLC d/b/a Guadalajara Family Mexican Restaurant, restaurant, 1745 Dell Range Blvd.; Bighorn Associates, LC d/b/a Chili's Southwest Grill and Bar, retail, 1320 Dell Range Blvd.; Appaloosa Enterprises, LLC d/b/a Sanford's Grub & Pub, retail, 115 E. 17th St.; Louis Kutsulis d/b/a Lucky 7, restaurant, 216 E. 17th St.; Wild West Apple Ventures d/b/a Applebee's Neighborhood Grill and Bar, retail, 1401 Dell Range Blvd.; Delilah R. Pineda d/b/a Estevan's Cafe, restaurant, 1820 Ridge Road; GMRI, Inc. d/b/a Red Lobster #639, retail, 1923 Dell Range Blvd.; Dynasty Café, Inc. d/b/a Dynasty Cafe, restaurant, 600 W. 19th St.; Mondello Corporation d/b/a L'Osteria Mondello, restaurant, 1507 Stillwater; China Buffet, Inc. d/b/a China Buffet, restaurant, 1958 Dell Range Blvd.; RGLM, Inc. d/b/a Avanti Italian Restaurant, restaurant, 4620 Grandview Ave.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, restaurant, 115 W. 15th St., #1; Nagle-Warren Mansion, LLC d/b/a Nagle-Warren Mansion LLC, restaurant, 222 East 17th St.; OC Cheyenne, LLC d/b/a Old Chicago Restaurant, retail, 1734 Meadowland Dr.; Iron Chefs, Inc. d/b/a Tokyo Bowl, restaurant, 1829 Dell Range Blvd.; Jerry P. Innis d/b/a Pizzeria Venti, restaurant, 112 E. 17th St.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, microbrewery, 115 W. 15th St., #1; OG of Cheyenne, Inc. d/b/a The Olive Garden Italian Restaurant, bar & grill, 1536 Dell Range Blvd.; Moreno and Aguilar, LLC d/b/a Hacienda Guadalajara, bar & grill, 317 E. Lincolnway; O'Jackson's, Inc. d/b/a Jackson's All American Sports Bar & Grill, bar & grill, 1121 Old Town Lane; WYOMEX II, Inc. d/b/a On The Border, bar & grill, address not issued (located on Meadowland Dr. across from Old Chicago), and Yu Zheng d/b/a Golden House Restaurant, restaurant, 1651 Carey Ave. #8. City Clerk Carol Intlekofer offered a suggestion that in lieu of reading the list of liquor license renewals for the 2009-2010 term, as shown on the meeting agenda, the listing itself be recorded in its entirety in the official minutes of the meeting, together with any motions and votes. She noted, pursuant to state statute requirements, publication of the notice of renewal applications and posting of notices on respective licensee premises have been achieved and the holding of a public hearing before the governing body has been conducted. She further stated that the City Attorney has advised that this statement on the record provides sufficient documentation to identify those individual renewal applications that may be acted upon at the meeting. Upon query by Mayor Kaysen to members of the governing body, there was no objection voiced to recognize the renewal applicants as listed on the agenda in lieu of the Clerk reading the individual applicants. John Rogers, attorney representing HEJE, Inc., advised the applicant will not be in a position to be open at their new business location by April 1, 2009, pursuant to the current license's status as a "parked" license, and requested approval of the renewal with an extension of the parked status for an additional 6 weeks to allow the applicant time to become operational at its new business site. He referenced a recent letter he had submitted (on file with office of City Clerk) explaining the reason for requesting extension of the parked status, and requested consideration of a

2 week postponement to provide for any further information desired to be presented at the next Finance Committee meeting. Reporting for Finance Committee, Mr. Valdez moved to approve the renewal applications "en masse", seconded by Mr. Collins. Mr. Valdez moved to divide the question to allow for a separate motion on the microbrewery renewal permit application for Shadows Brewing Co., LLC, seconded by Mr. Collins. Mr. Valdez moved to approve the microbrewery renewal permit contingent upon the City Clerk receiving verification from the Wyoming Liquor Division no later than 5:00 p.m. on March 31, 2009 that the statutory minimum production quantity required by state statutes has been met. Mayor Kaysen advised the motion to divide must be acted upon prior to the motion to approve. Upon inquiry, Bob Mason, Assistant City Attorney, clarified Shadows Brewing should be able to meet statutory requirements regarding brewing production quantity requirements by March 31, 2009. Motion to divide the question carried. Voting "yes" – all members of the governing body. Dr. Rinne moved to further divide the question to allow for a separate motion on the retail renewal application for HEJE, Inc., seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body. Mr. Valdez moved to approve Shadows Brewing Co., LLC microbrewery permit renewal application contingent upon the City Clerk receiving verification from the Wyoming Liquor Division no later than 5:00 p.m. on March 31, 2009 that the statutory minimum production quantity required by state statutes has been met, seconded by Mr. Spiker. Tim Mangum, Wyoming Liquor Division, confirmed he had spoken with the owner of Shadows Brewing about the production requirement, and clarified they should be able to meet the statutory requirement by the deadline of March 31, 2009. He briefly reviewed state requirements regarding the amount of product that must be brewed annually to qualify for permit renewal, and noted equipment breakdown problems encountered by Shadows Brewing and their efforts to meet brewing requirements. Motion to approve contingent upon the Clerk receiving verification from the Liquor Division carried. Voting "yes" – all members of the governing body. Mr. Spiker moved to approve the renewal application for HEJE, Inc., seconded by Mr. Collins. Mr. Collins moved to postpone action on the HEJE, Inc. application for 2 weeks (to March 23, 2009), seconded by Ms. Broyles. Upon inquiry, Mr. Rogers clarified his prior comments by stating he was requesting approval for continuance of the license's parked status for 6 weeks, and stated a 2 week postponement will allow for further discussion if needed at Finance Committee. Upon inquiry regarding the time requirement in which the license must be operational, Mr. Rogers explained reasons for the applicant's delay in opening a package store at their new location involved a 2 month time period in which they were waiting for approval from the Board of Adjustment. Following discussion, Mr. Collins withdrew his motion to postpone with concurrence by Ms. Broyles as second to the motion. City Clerk Intlekofer noted for clarification that during a conversation with Mr. Rogers she had suggested a 2 week postponement to allow time for the Council to receive any additional information on the parked status request. Mr. Pierson moved to amend the motion to approve the renewal application for HEJE, Inc. to also extend the parked status of the license to no later than July 1, 2009, seconded by Mr. Collins. Discussion followed on progress by the applicant to open the business at its new site, and licensee plans to be open and operational in mid-May. Motion to amend carried. Voting "yes" – all members of the governing body. Main motion to approve HEJE, Inc. retail renewal application as amended to extend the parked status to July 1, 2009 carried. Voting "yes" – all members of the governing body. Upon inquiry regarding status of the pending On the Border restaurant (bar and grill licensee), City Clerk Intlekofer advised it was her understanding the licensee has had some zoning issues regarding the proposed business location, and provided information on the parked status time frame for the license. Upon inquiry, Police Chief Bob Fecht reviewed compliance criteria for Applebees and clarified they have been in full compliance since an incident that occurred last year. Main motion to renew the remaining renewal licenses "en masse" carried. Voting "yes" – all members of the governing body.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Pizza Hut of Cheyenne, Inc. d/b/a Pizza Hut/Wing Street, 4503 Western Way, Cheyenne, WY. Motion (per Consent Agenda) carried.

APPOINTMENTS:

Appointment of Jason Paiz to the Police Civil Service Commission, Ann Redman to the Personnel Commission, and Mark Archer to the Contractor Licensing Board. Mr. Pierson moved to approve, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of a Public Hearing to be held March 23, 2009 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. § 15-1-402 exists for the property described as being situated in Tracts 249, 250, 251, 252, Sunnyside Addition 6th Filing, except North 240 feet thereof and including portions of Charles Street and Arthur Street.

Announcement was made of a Public Hearing to be held March 23, 2009 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. § 15-1-402 exists for the property described as public road and alley right of way situated as all of Campstool Road, Christensen Road, and Venture Drive as described in plats of record for Cheyenne Business Parkway, Third filing and Venture Drive Addition.

OTHER CITY BUSINESS:

Comment was made expressing appreciation for fair and open discussion of agenda items.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:39 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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